will collect from the veteran, or his estate, by set-off against any amounts otherwise payable to the veteran or his estate; or in any other lawful manner, any sums disbursed by the United States on account of the claim pursuant to the guaranty.

§ 36.4045 *Suit by administrator.* (a) Whenever pursuant to these regulations, the Administrator institutes, or causes to be instituted by the creditor, or otherwise, any suit in equity; action at law; or probate proceedings or the filing of a claim in such; or other legal or equitable proceedings of any character, or any sale, in court or pursuant to any power of sale, the person or persons properly instituting the same (including the Administrator), shall be entitled to recoup from any proceeds realized therefrom any expenses reasonably incurred, including trustee fees, court costs, and attorney fee paid (or the reasonable value of the services of the trustee and of the attorney, if performed by salaried person or persons, or by the party himself, when proper).

(b) The net proceeds, after setting off such items that may properly be recouped, shall be credited to the indebtedness, or otherwise as may be proper under the facts.

(c) In determining the propriety of recoupment and the amount thereof consideration shall be given to any provisions in the note or mortgage relating to such items, and any amounts actually realized pursuant thereto.

§ 36.4046 *Creditor's records and reports required.* (a) The creditor shall maintain a record of the amounts of payments received on the obligation and disbursements chargeable thereto, and the dates thereof. Any creditor who fails to maintain such record shall be presumed to have received on the dates due all sums which by the terms of the contract are payable prior to date of claim for default, and the burden of going forward with evidence and of ultimate proof of the contrary shall be on such creditor; not on the debtor, or the United States.

(b) On any delinquent loan the creditor shall report annually on the anniversary of the earliest unremedied default any amount received or disbursed, the unpaid balance of principal and accrued interest and any other items chargeable; and the nature of any defaults not already reported. He shall include such additional information, if reasonably necessary and obtainable, which may, from time to time be requested by the Administrator.

(c) A proposed lender may be required to submit evidence satisfactory to the Administrator of his equipment for maintenance of adequate records on, and his ability to service, loans if guaranteed pursuant to the provisions of the act and these regulations.

§ 36.4047 *Failure to supply information.* Failure to supply any available information required by these regulations within two months after request therefor will entitle the Administrator to obtain such information otherwise, and the expense of so obtaining it, plus ten dollars to cover estimated overhead expenses, shall be chargeable to the creditor who failed to comply with such request.

§ 36.4048 *Notice to administrator.* Any notice required by these regulations to be given the Administrator shall be sufficient if in writing, and delivered at, or mailed to, the Veterans Administration office at which the application for guaranty was approved or to any changed address of which the creditor has been given notice or, at the option of the creditor, to the central office of the Veterans Administration, Washington 25, D. C. If mailed the notice shall be by registered mail when so provided by these regulations.

§ 36.4049 *Right to inspect books.* The Administrator has the right to inspect, at a reasonable time and place the papers and records pertaining to the loan and guaranty. If permission to inspect is declined the Administrator may enforce the right by subpoena under the provisions of Title III, Public No. 844, 74th Congress, 49 Stat. 2031–35, 38 U.S.C. 131, or in any other lawful manner.

[SEAL] FRANK T. HINES,
Administrator of Veterans Affairs.

[F. R. Doc. 44–16112; Filed, Oct. 19, 1944; 10:19 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—General Land Office (Appendix)

[Public Land Order 248]

FORT PECK RESERVATION, MONTANA

TRANSFERENCE OF JURISDICTION OVER CERTAIN LANDS FROM SECRETARY OF AGRICULTURE TO SECRETARY OF INTERIOR

Modification of Executive Order No. 8055 dated February 23, 1939, transferring jurisdiction over certain lands on the Fort Peck Reservation, Montana, from the Secretary of Agriculture to the Secretary of the Interior.

Whereas, by Executive Order No. 8055, dated February 23, 1939, jurisdiction over 2,565 acres of land on the Fort Peck Indian Reservation, Montana, acquired under authority of Title II of the National Industrial Recovery Act, approved June 16, 1933 (48 Stat. 195, 200), in connection with the Milk River (LA–MT2) Land Utilization Project of the Department of Agriculture, was transferred from the Secretary of Agriculture to the Secretary of the Interior, and

Whereas, 320 acres described as the W½ of section 33, township 32 north, range 43 east, Montana Meridian, purchased in connection with the said Milk River Project, was inadvertently omitted from Executive Order No. 8055.

Now, therefore, by virtue of authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, Executive Order No. 8055, dated February 23, 1939, is hereby modified so as to include under the provisions thereof 320 acres of land described as the W½ of section 33, township 32 north, range 43 east, Montana Meridian.

ABE FORTAS,
Acting Secretary of the Interior.

OCTOBER 10, 1944.

[F. R. Doc. 44–16110; Filed, Oct. 19, 1944; 9:45 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[Rev. S. O. 112, Amdt. 1]

PART 95—CAR SERVICE

DESTINATION FREE TIME ON FRESH OR GREEN FRUITS OR VEGETABLES

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 17th day of October, A. D. 1944.

Upon further consideration of Revised Service Order No. 112 (9 F.R. 11278–79) of September 11, 1944, and good cause appearing therefor:

It is ordered, That:

Paragraph (b) of Revised Service Order No. 112 (9 F.R. 11278–79) of September 11, 1944, be, and it is hereby, amended to read as follows:

(b) The free time allowed at destination on any refrigerator car loaded with fresh or green fruits or vegetables as defined in Service Order No. 70, as amended, shall be as follows:

(1) No free time (except as otherwise provided in paragraph (iii) hereof) shall be allowed when car is held for ordering from one location to another location within the switching limits of the same city or town or when held for surrender of bill of lading, advise order, or payment of lawful charges prior to delivery to a connecting line for final delivery in the same switching district.

(i) Demurrage detention on the first such transaction shall be computed from the first 7:00 a. m., after notice of arrival is sent or given to the consignee or party entitled to receive it, when car is held on hold, inspection or public delivery track or from the first 7:00 a. m. after actual or constructive placement when for delivery on an other-than-public delivery track, until order to move car to another location within the switching limits of the same city or town is received by an agent of the railroad holding the car.

(ii) Demurrage detention on each subsequent transaction within the

switching limits of the same city or town prior to an unloading transaction (see paragraph (2)), shall be computed from the first 7:00 a. m., following actual placement on hold, inspection or public delivery track, or actual or constructive placement on an other-than-public delivery track, to which it has been ordered, until order to move the car to another location within the switching limits of the same city or town is received by an agent of the railroad holding the car.

(iii) When the total period of detention from the first 7:00 a. m. after notice of arrival is sent or given to the consignee or party entitled to receive it, until the car is unloaded and released is 48 hours or less, no demurrage charges shall accrue. (40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U.S.C. 1 (10)–(17))

It is further ordered, That this order shall become effective at 7:00 a. m., October 19, 1944; that a copy of this order and direction shall be served upon each State Commission and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 44–16095; Filed, Oct. 18, 1944; 3:54 p. m.]

[S. O. 246]

PART 95—CAR SERVICE

DEMURRAGE ON STATE BELT RAILROAD OF CALIFORNIA

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 17th day of October, A. D. 1944.

It appearing that demurrage charges are not being assessed for detention to closed box cars used for transporting commodities intraterminal by the State Belt Railroad of California; that such cars are being delayed unduly, resulting in a diminution of utilization of such cars; in the opinion of the Commission an emergency exists requiring immediate action:

It is ordered that:

(a) *Demurrage charges to be applied on closed box cars engaged in intraterminal transportation.* (1) The State Belt Railroad of California shall apply the demurrage charges shown in paragraph (a) (2) to any closed box car used for transporting any commodity to, from, or between industries, plants, or piers located at points or places named in Districts A and/or B as described in Item No. 15 of Tariff I. C. C. No. 5 of the State Belt Railroad operated by the State of California.

(2) After the expiration of forty-eight (48) hours' free time after a closed box car is first placed for loading and until shipping instructions covering such car are tendered to said carrier's agent and/or after forty-eight (48) hours' free time after a closed box car is first placed for unloading and until such car is unloaded and released, the demurrage charges shall be $2.20 per car per day or fraction thereof for the first two (2) days; $5.50 per car per day or fraction thereof for the third day; $11 per car per day or fraction thereof for the fourth day; and $16.50 per car per day or fraction thereof for each succeeding day.

(b) *Application.* (1) The provisions of this order shall apply to intrastate as well as interstate traffic.

(2) On and after the effective date of this order the provisions of this order shall apply to detention of any closed box car held for either loading or unloading. The number of days such car has been held prior to the effective date of this order shall determine the charges applicable on that car on the first full demurrage day and all subsequent demurrage days occurring after the effective date of this order.

(3) *Closed box cars.* This order shall apply only to closed box cars having a mechanical designation prefixed by "X" or "V" in the current Official Railway Equipment Register.

(4) After a closed box car is loaded and released for movement by the tender of shipping instructions to said carrier's agent, if the car is not actually placed for unloading for any reason within forty-eight (48) hours after such car is released for movement, but is held by the carrier short of place of delivery for unloading, such car will be considered as constructively placed at the expiration of the said forty-eight (48) hours and demurrage time shall be computed from the expiration of the said forty-eight (48) hours until said car is unloaded and released.

(c) *Expiration.* This order shall expire at 7:00 a. m., November 19, 1944. (40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U.S.C. 1 (10)–(17))

It is further ordered, that this order shall become effective at 7:00 a, m., October 19, 1944, and that a copy of this order and direction shall be served upon the California State Railroad Commission and upon the State Belt Railroad of California; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 44–16096; Filed, Oct. 18, 1944; 3:54 p. m.]

Notices

FEDERAL POWER COMMISSION.

[Docket No. IT–5920]

WASHINGTON WATER POWER CO.

NOTICE OF APPLICATION

OCTOBER 18, 1944.

Notice is hereby given that on October 9, 1944, The Washington Water Power Company, of Spokane, Washington, filed an application pursuant to Executive Order No. 8202, dated July 13, 1939, and the Federal Power Commission's Orders Nos. 67 and 115, dated November 3, 1939 and December 28, 1943, respectively, for a Presidential Permit for the construction, operation, maintenance, and connection of facilities at the boundary of the United States and Canada from a point in Metaline Falls, Washington, for the importation of electric energy from Canada to the United States.

Any person desiring to be heard or to make any protest with reference to said application should, on or before October 31, 1944, file with the Federal Power Commission a petition or protest in accordance with the Commission's rules of practice and regulations.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 44–16109; Filed, Oct. 19, 1944; 9:45 a. m.]

FEDERAL SECURITY AGENCY.

Food and Drug Administration.

[Docket No. FDC–42]

CANNED OYSTERS; STANDARDS OF FILL OF CONTAINER

PROPOSED REGULATION

It is proposed that, by virtue of the authority vested in the Federal Security Administrator by provisions of the Federal Food, Drug, and Cosmetic Act, 52 Stat. 1046, 1047, and 1055, 21 U. S. C. secs. 341, 343 (h) (2) and 371; the Reorganization Act of 1939, 53 Stat. 561 ff., 5 U. S. C. sec. 133–133v, and Reorganization Plans No. I (53 Stat. 1423) and No. IV (54 Stat. 1234); and upon the basis of evidence of record at the hearing duly held pursuant to notice issued on July 20, 1944 (9 F.R. 8192) the following order be made.

Findings of fact.[1] 1. On May 27, 1912 the Secretary of Agriculture, to facilitate the enforcement of the Food and Drugs Act of 1906, issued an announcement known as Food Inspection Decision 144

[1] The page references to certain relevant portions of the record are for the convenience of the reader; however, the findings of fact are not based solely on that portion of the record to which reference is made, but on consideration of all the evidence in the record.